WEB EXCLUSIVE

'What has made Delhi so indifferent to the humanity of Dilliwallahs?'
— Kaushik Das Gupta
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WORDLY WISE

At his best, man is the noblest of all animals; separated from law and justice he is the worst.
—Aristotle

The Indian EXPRESS
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RAMNATH GOENKA
IN 1932

BECAUSE THE TRUTH
INVOLVES US ALL

Court protects space for protest, it needs to

CHIEF JUSTICE of India Surya Kant's rebuke to the Greater Noida executive magistrate on Wednesday was well deserved. It also sends out a message that is as heartening as it is timely: That the country's apex court, which has a distinguished record of expanding the constitutional promise of civil liberties through judicial review and landmark rulings, and which has broadened the fundamental right to freedom of speech and expression, will be watchful against state overreach. In this case, the CJI was responding to a notice issued to a student over his alleged participation in the Cockroach Janta Party-led protests over exam paper leaks, even after the SC had, in its September 1 order, quashed cases against student protesters, except those who had a criminal history. The notice to Akshat Tripathi was revoked subsequently, but the Court has rightly demanded accountability for the fact that it was issued in the first place. A few days ago, the Allahabad High Court quashed National Security Act charges against another student, Akriti Chaudhary, in connection with the workers' protests in Noida in April. It described the invocation of the NSA as "arbitrary and vague", a decision "worthy of derision", and indicted officials from the DM to the SHO, while directing that the student be paid compensation for the "casual and cavalier exercise of authority by the state". The two court interventions, granting relief to students, upholding their right to protest, are welcome.

The students' protests at Jantar Mantar and beyond, which forced the powerful to listen, have underlined a message that governments can ill afford to ignore: In a democracy, especially in a young country, the people's right to speak up and talk back to power must be protected and expanded. There are restrictions, of course — protest cannot slide into violence or vandalism or incitement to violence — but the onus is on the state to define those restrictions reasonably, precisely and narrowly. And if the state relies on loose and overbroad definitions to criminalise protest as it appears to have done in slapping the stringent NSA on Chaudhary and in attempting to intimidate Tripathi, then it must be checked by the court. Because, as the Allahabad HC underlined in the context of UP, the abuse of power risks reducing the state to an "Orwellian dystopia", a dire landscape denuded of freedom, marked by severe government control.

A climate where the executive is seen to weaponise its powers to curb civil liberties and get away with it dishonours the constitutional promise and guarantee. The CJI and the Allahabad HC bench have done well to apply the check. The government must heed the message and take a step back. The judiciary must build on this valuable moment. To ensure that in a nation with glaring gaps between aspiration and opportunity, where the young have a voice and a phone to amplify it, the freedom to protest peacefully is a fundamental right. That message should go down to every thana, every neta.

A new lead on a long neglected disease

THE FINDING of a new genome-wide study of endometriosis, that Indian women may be genetically predisposed to the condition, trains the spotlight on a health concern that has been understudied and ignored for far too long. An estimated 10 per cent of women of reproductive age live with the severe menstrual pain, chronic pelvic discomfort and extreme fatigue that can result when the tissue lining the uterus, known as the endometrium, begins growing in other parts of the body. India alone is estimated to bear 25 per cent of the global endometriosis burden. The exact cause of the disease is not known. A cure, too, is yet to be found. But the ICMR-led study, the first of its kind in India, is part of a growing body of research on the disease. It offers a promising foundation on which new approaches to earlier diagnosis and treatment can be built.

While there is now a growing recognition of endometriosis as a major public-health concern, getting a diagnosis at all has long been the biggest hurdle for women suffering from the condition. With infertility being one of the major symptoms of the disease, many get diagnosed with endometriosis only when they have trouble conceiving. Other manifestations, especially period pain and fatigue, are frequently dismissed as normal menstrual discomfort. According to the WHO, the average time for an endometriosis diagnosis is between four and 12 years — in the time between the symptoms surfacing and the treatment beginning, the condition often worsens, leading to extensive internal scarring and organ damage.

An emerging body of research now suggests that endometriosis may be associated with a higher incidence of other immune system conditions such as lupus, multiple sclerosis and inflammatory bowel disease. In India, where awareness remains scanty, access to specialised care severely limited and population-specific research evidence meagre, the new findings are a step towards early recognition and management of the disease as well as prevention of the related complications.

Love means not having to deal with siblings

FORGET THE flowers, the awkward silences and the tentative imagination of what a shared future might look like. In China, the road to marital bliss may now begin with an unusual question: How many siblings does one have? A working paper by Fangqi Wen of Ohio State University has posited that only children prefer to settle for partners who also happen to be only children, that their chances of such a match are 18.4 per cent higher than those of their contemporaries with siblings.

Sibling status may sound like an eccentric addition to the marriage checklist but it is a revealing one, especially given the fact that marriage rates in China have dropped by half since 2017, and in the first half of 2026, marriage registrations have dropped by 7.5 per cent. Interestingly, despite China's one-child policy between 1979 and 2015, single-child families do not form the majority. And so, generations of young Chinese people have grown up with complicated family values — only children, accustomed to being the sole focus of parental attention and the sole claimant to family resources, are inclined to be reluctant to marry into households with competing heirs and complicated loyalties.

In India, however, prospective suitors rarely have to ask each other these questions. In Sooraj Barjatya style, marriage is rarely between two individuals. It comes with a side of families large and small, and extended kin bursting at the seams with cousins, uncles and aunts. The family tree, after all, is an entire ecosystem to have and to hold, till death do them part.

25 years on, America's response to 9/11 is its biggest self-inflicted hurt



JONAH BLANK

IT WAS the most perfect September morning that Washington could serve up: Bright, sunny, just enough chill in the air to wash away the summer's humidity. I wasn't eager to spend the next few hours in a windowless basement for my intel briefing, and I wouldn't have to: The morning bottleneck at my office was all outgoing. I asked the guard what was happening, and he pointed to a pillar of smoke in the southwest sky. From what had, until about 10 minutes ago, been the exterior wall of the Pentagon.

Senators and staffers alike packed into any restaurant with a TV, to watch footage of planes crashing into the World Trade Centre. Only much later would we learn that we'd been the bullseye of the fourth plane, which passengers and crew intervened with to force it to crash in Pennsylvania. Its target had been the Capitol building itself, and the SCIF in which my briefing was scheduled was located directly beneath the rotunda.

Commentators would speak about the confusion of that morning, but at the time it was all quite clear: As soon as the second plane struck the South Tower at 9.03 am, there was no doubt that this was a terrorist attack. And from that fact, everything else was obvious: We had been struck by Al Qaeda, and the Bush Administration would use this as a pretext to invade Iraq.

I was the Senate Foreign Relations Committee staffer responsible for Afghanistan and counter-terrorism, so perhaps I had greater clarity than some of my colleagues. But this was not a difficult call: There was no other terrorist group with both the capability and the intent to stage such an operation. Al Qaeda had no ties whatsoever to Iraq, but the Administration had spent the past nine months openly beating its war drum. Bush would certainly use this unrelated atrocity as an excuse to do what he already intended.

Which was, of course, exactly how it turned out. Al Qaeda inflicted the greatest damage on America by any foreign adversary since Imperial Japan bombed Pearl Harbor. And in response, America inflicted the greatest damage on itself since the Civil War. We still haven't recovered from our response to 9/11 — and we're now replicating our worst mistakes. Some of our errors were those of law. We gave the government vast new powers to surveil and detain anyone. We sacrificed our core values by reintroducing torture as an accepted practice for military detainees. We created the Department of Homeland Security and ICE, and we turned neighbourhood cops into up-armoured shock-troops kitted out for urban combat.

But the greatest errors were those of policy: We launched two decades-long wars, at the cost of trillions of dollars and hundreds of thousands of lives. The overwhelming mass of the casualties were Iraqis and Afghans, but over twice as many Americans died in these futile wars as all those killed by Osama bin Laden.

The wars in Afghanistan and Iraq were not the same. Not even the most fervent war-hawk wanted to invade Afghanistan, but there seemed to be little alternative; I was involved with these deliberations, and I share in whatever blame must be apportioned. Even now, with the benefit of hindsight, I don't have a good answer for the question of how we should have handled Afghanistan. A 20-year occupation was definitely the wrong response, but it was a devil's dilemma that nobody sought out.

> Adversity can be a superb teacher. But the greatest disaster of recent American history has taught us nothing. Are we safer than we were on September 10, 2001?

Iraq, however, was purely a war of choice. We marched in with our eyes wide open. Anyone who didn't know it would be a debacle was simply refusing to see.

Our current war on Iran is even more foolhardy than our invasion of Iraq. It has not (at least yet) resulted in the same level of bloodshed, because we have not (at least yet) introduced ground troops. But the Iraq fiasco was debated for nearly two years beforehand, and authorised by Congress — as is required by the Constitution. It had clear objectives, and achieved the most immediate of them (the removal of Saddam Hussein, and imposition of a regime acceptable to the US). The war on Iran was launched purely on the whim of a feckless president, with no strategic planning, and a constantly changing set of war aims that could never be achieved. This war was lost from the moment the first Tomahawk was fired.

Adversity can be a superb teacher. But the greatest disaster of recent American history has taught us nothing. Are we safer than we were on September 10, 2001? Maybe safer from the specific terrorist menace that killed 2,977 of us. But safer from the huge range of other dangers that jeopardise the other 361 million? Pick your peril: Disease, climate change, mass impoverishment, AI apocalypse — what could that mountain of money and all those sacrificed lives have accomplished if devoted to any of the hazards that threaten Americans every day?

In the immediate aftermath of 9/11, Americans briefly came together in unity. There were exceptions, of course: The scapegoating of Muslims (or anyone mistaken for them), outbursts of misdirected anger, a pervading frustration at being shown that our nation was more vulnerable than we wished to know. But the overwhelming sentiment was one of solidarity. Americans of all political stripes felt a sense of kinship and community that we hadn't often experienced before, and certainly haven't in more recent times.

My children will never know the less embattled America that existed before 9/11. They'll never enter an airport or government building without a prison-style security screening, and maybe a bit of extra scrutiny because of their South Asian complexion. Is the marginal gain in safety from one (rather rare) threat worth the loss of so much else? Definitely not to me. But I hope my kids can someday experience the America that existed in the weeks after the attack. If we can recapture some of the social comradeship that we found in the depths of our worst tragedy, perhaps we'll have learned a lesson from 9/11 after all.

Blank is author of Arrow of the Blue-Skinned God: Retracing the Ramayana Through India *and* Mullahs on the Mainframe: Islam and Modernity Among the Daudi Bohras

From ashes of 9/11, a new South Asian political compact



SAYU BHOJWANI

SINCE 2002, the Tribute in Lights, an installation consisting of 88 searchlights, has been arranged to look like two columns, bringing back the image of the Twin Towers in the night sky. This year, the 25th anniversary of the attack that shook the lives of New Yorkers and shifted the US immigration landscape, something is different. For the first time, New York City's mayor is a Muslim man. Zohran Mamdani's official role, like three mayors before him, includes presiding over New York City's 9/11 remembrance ceremony.

Over 100,000 people have expressed objection to Mamdani's presence at the event. As a South Asian, this petition is a stark reminder of the country's ever-present Islamophobia and a call to continue critical work to reshape the public narrative.

On September 11, 2001, the personal and professional trajectory of my life changed, as it did for many others who trace their heritage to the Subcontinent. That day, I was scheduled to begin a doctoral programme. That day, I voted for the first time, two hours before the first plane hit the South tower. That day marked one month since I had been executive director of an NGO working with youth from Bangladesh, India, Pakistan and Sri Lanka. Everything changed — for me, for those young people and for the city.

Almost every New Yorker knew someone who was connected to the World Trade Centre — someone who worked there, who was nearby, or who was headed there. Even if, like me, you were fortunate enough not to have known anyone who died that day, the way you viewed the city, maybe even the world, changed. In its immediate aftermath, US immigration policy became more vindictive than ever. Most importantly, we can trace a direct path from 9/11 to the establishment of ICE, whose mission is to "protect America through criminal investigations and enforcing immigration laws to preserve national security and public safety".

> Even if, like me, you were fortunate enough not to have known anyone who died that day, the way you viewed the city, maybe even the world, changed

But something else happened in the days and weeks following the attacks — the establishment or strengthening of organisations dedicated to supporting the South Asian community. Groups like the one I started, South Asian Youth Action, and others like DRUM, Families for Freedom and Chhaya CDC rallied around the community, providing immigration advice, organising against problematic government policy, helping members access critical services. In the years following, those and many other groups have increased their capacity and scope, deepening their civic engagement and political impact.

These organisations became the political home for South Asians who felt alienated or invisible. Mamdani's own trajectory included working to prevent foreclosures and evictions at Chhaya CDC. Activism born from September 11 shaped his 2024 campaign and victory. So, it is particularly ironic that his presence at the ceremony is being challenged.

But it is also a predictable page from America's well-worn playbook, which calls on immigrants in times of economic need and expects subservience and servitude in return. The message is familiar — stay in your place.

What's unfamiliar and increasingly threatening is that South Asian political power is growing, not just among elites who have always had access to Congressional leaders and other decision-makers, but among everyday South Asians. The power of social media, our growing political maturity, and our frustration with being taken for granted or overlooked have created a powerful combination. We understand what's possible when we use our voice, exercise our right to vote, and demand more than just a photo opportunity. And we have a prominent new representative in the second most powerful elected role in the US — New York City mayor Mamdani.

His presence at the 9/11 memorial event is as significant as the movement that helped elect him. Mamdani's supporters are a broad coalition of New Yorkers who are charting a different path for this city that is more inclusive, not just of race and ethnicity, but also of class. Among those paving that road are thousands of South Asians, including elected officials like Shekhar Krishnan and Shahana Hanif. As policymakers, they represent a generation of South Asians who have been shaped by 9/11 but refuse to be defined by it. They remind us that we must never forget our responsibility to speak up, organise others and demand our place in every institution in America.

Bhojwani was the first commissioner of immigration affairs, New York City, in the months after the September 11 attacks. She is an adjunct professor and author

Allahabad HC reminds us: Democracy needs dissent



JOHN BRITTAS

THE ALLAHABAD High Court's verdict quashing the detention of 25-year-old Delhi University law student Akriti Chaudhary is not merely a legal correction. It is a sharp reminder that in a democracy the right to dissent and protest is not a privilege granted by the powerful — it is the oxygen that keeps the system alive. Without it, the air grows thin, surveillance thickens, and history begins to be rewritten daily to suit those in charge.

The court described the state's version as a "concocted story", flagged serious discrepancies in the timing of her arrest and the notices issued under the BNSS, and found no credible material showing Chaudhary had instigated violence, arson or stone-pelting. She was a student activist with no criminal record. The district magistrate of Gautam Buddha Nagar, the judges held, had desired "to set an example" with her to deter others from exercising their right to freedom of speech and expression in support of labourers. The district magistrate's conduct was "worthy of derision", and she was "guilty of violating her oath of allegiance". Continued "despotic" conduct, they warned, could reduce Uttar Pradesh to a dystopia. This is a rare and concrete accountability measure.

The deeper story pertains to the heavy-handed state response that turned a legitimate struggle into a theatre of fear, arbitrary arrests and preventive detention. In April, thousands of contractual employees and factory workers across Noida's industrial belts — many earning as little as Rs 10,000-13,000 a month — came onto the streets. Their demand was simple and urgent: A minimum wage of around Rs 18,000-20,000. For them, the strike was not about ideology but subsistence. Instead of dialogue, the administration responded with overwhelming force. Roads were blocked, protests were met with batons and arrests, and hundreds were detained. FIRs were registered under serious charges. The National Security Act — a preventive detention law that allows incarceration without trial for up to a year — was invoked.

As a member of a delegation headed by CPI(M) General Secretary MA Baby, along with my colleagues in Parliament, I witnessed firsthand the high-handed manner of the administration. Despite being Members of Parliament, our team faced bureaucratic stonewalling. The district magistrate refused to meet us. Only after much effort was I able to speak to her over the phone. The workers who had come to meet us were detained by the police. We were forced to sit in a *dharna* at the DM office, simply to secure their release. In the heart of the National Capital Region, basic democratic rights were being trampled with impunity.

The High Court's judgment is a necessary and welcome assertion of our constitutional rights. It affirms that the right to peaceful protest and the right to demand better wages cannot be criminalised through fabricated narratives or the arbitrary use of preventive detention. But lasting justice for the workers requires more than the quashing of one NSA order. It requires an end to the culture of treating labour protests as threats to public order rather than legitimate expressions of the right to a life of dignity. The interim wage revision announced by the UP government, raising minimum wages by about 20-21 per cent, was a reluctant response; workers and unions have maintained that it falls short of a living wage. Many of those arrested still face multiple cases.

> Lasting justice for the workers requires more than the quashing of one NSA order. It requires an end to the culture of treating labour protests as threats to public order

The court's strong words must now be matched by genuine accountability and a recognition that the right to survive is not a privilege — it is fundamental. And to protest is one's right and to dissent is a duty in a democracy.

The writer is CPI(M) Rajya Sabha Member

40 YEARS AGO

September 11, 1986


JANSATTA
INDIAN EXPRESS
BPL
Tyagi submits report to PM
Commando action a farce, seizure plot to discredit NAM
Police nab 13 terrorists in Punjab
CBI chief to question Vaidya 'assassins'

Punjab Police nab 13 terrorists

THIRTEEN OF the 20-member gang of the dreaded terrorist Avtar Singh Brahma have been arrested, the police claimed in Jalandhar. P C Dogra, DIG, Jalandhar range, told newsmen that the gang was responsible for killing four persons at Chola Sahib in Sarhali in Amritsar district on August 31.

Interrogating Vaidya 'assassins'

THE CBI director-general, Mohan Katre, flew to Pune to supervise the interrogation of Sukhdeo Singh and Nirmal Singh, arrested in connection with Gen A S Vaidya's killing. He is likely to stay for a day or two to guide the investigations in the wake of the breakthrough made possible by the two arrests.

Court releases Badal, Tohra

THE PRESIDENT of the breakaway faction of the Akali Dal(L), Parkash Singh Badal, and the former president of the Shiromani Gurudwara Prabandhak Committee, Gurcharan Singh Tohra, were released by additional chief metropolitan magistrate V K Malhotra after a month's detention in Tihar jail. They were detained after refusing to comply with the orders of the Delhi police commissioner asking them to leave the Capital.

'Indira loyalists' meet President

PRAKASH MEHROTRA, former Assam governor and member of the steering committee of the 'Indira Loyalists', has alleged that pressure was brought to bear on President Zail Singh not to meet with a delegation of his party. Mehrotra said that in spite of this, he met with the President, who agreed to accept a memorandum from the 'Indira Loyalists'.